



DECISION

Complaint No. : POS/5547/2023/68/KHS

Name and address of the complainant : Mr. Saud Ahmed,
R/o Flat No. 601, Amma Apartment, Chandio Village,
Punjab Colony, Clifton, Karachi.

Name of the Agency Complained against : Special Education Department

Name & Designation of Investigating Officer : Syed Maqsood Haider,
Director, Regional Office (South) Karachi.

Vetted by : Rehana G. Ali Memon,
Advisor-H.

Subject : **ALLEGED REFUSAL TO ISSUE DISABILITY CERTIFICATE FOR LOSS OF ONE EYE.**

THE COMPLAINT:

Mr. Saud Ahmed filed an online complaint on 21-07-2023, alleging that the Special Education Department unlawfully refused to issue him a disability certificate on the basis that loss of one eye "does not qualify as a disability." He stated that this stance is unjustified, particularly when senior ophthalmologists at LRBT Korangi have conclusively declared his left eye permanently non-functional following an incident in 2022. He further noted that applicants in other districts, including Hyderabad, are being issued disability certificates in similar circumstances without undue objections or additional documentation. He therefore solicited intervention of the Provincial Ombudsman Sindh in this matter.

PROCEEDINGS:

2. After admission of the complainant by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), as well as after receiving the mandatory Affidavit on Form "A" along with other relevant documents, a report was called from the Agency. On examining the report dated 05-01-2024 submitted by the Director (Admin & Finance), Sindh Persons with Disabilities Protection Authority (SPDPA) Karachi, it is noted that the complainant, Mr. Saud Ahmed, lost one eye in an accident in 2007 and applied for a disability assessment certificate. The Authority clarified that disability certificates are issued by a Medical Board under Section 25 of the Sindh Empowerment of Persons with Disabilities Act, 2018, following prescribed assessment procedures.

3. The report further explains that, according to the Guidelines for Disability Assessment, the minimum degree of disability to qualify for any concession or benefit is 40%. As the loss of one eye results in only 30% visual impairment, the complainant does not meet the required minimum standard and is therefore not eligible for a disability certificate.

4. On showing non satisfaction by the complainant that he was not referred to the District Committee Constituted as per section 25 (2) having person with required qualification, experience and competency for assessing the extent of specified disabilities in individuals. The committee then forward their assessment to the authority who shall be competent to issue the DAC. The complainant was referred to Dr. Ratan Dewan, Deputy Director, SPDPA who asked the complainant to get his eye tested form Ophthalmologist and submit the report to her which she will submit to concerned District Committee also referred as Medical Board which will assess him and forward its recommendation to SPDPA. Thereafter the Deputy Director will submit her final report to RD South. He got his test done and then Ms. Ratan sent him to the Board at Hyderabad as per his choice.

5. The complainant sent a WhatsApp message to Dr. Ratan Dewan, Deputy Director, Sindh Persons with Disabilities Protection Authority, stating that he visited Service Hospital for appearance before the Medical Board but was unable to complete the process due to overcrowding.

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He further informed that he now resides in Lahore and according to his medical report, his remaining eye is functioning properly. Consequently, he does not wish to pursue the matter further and requested to close the case.

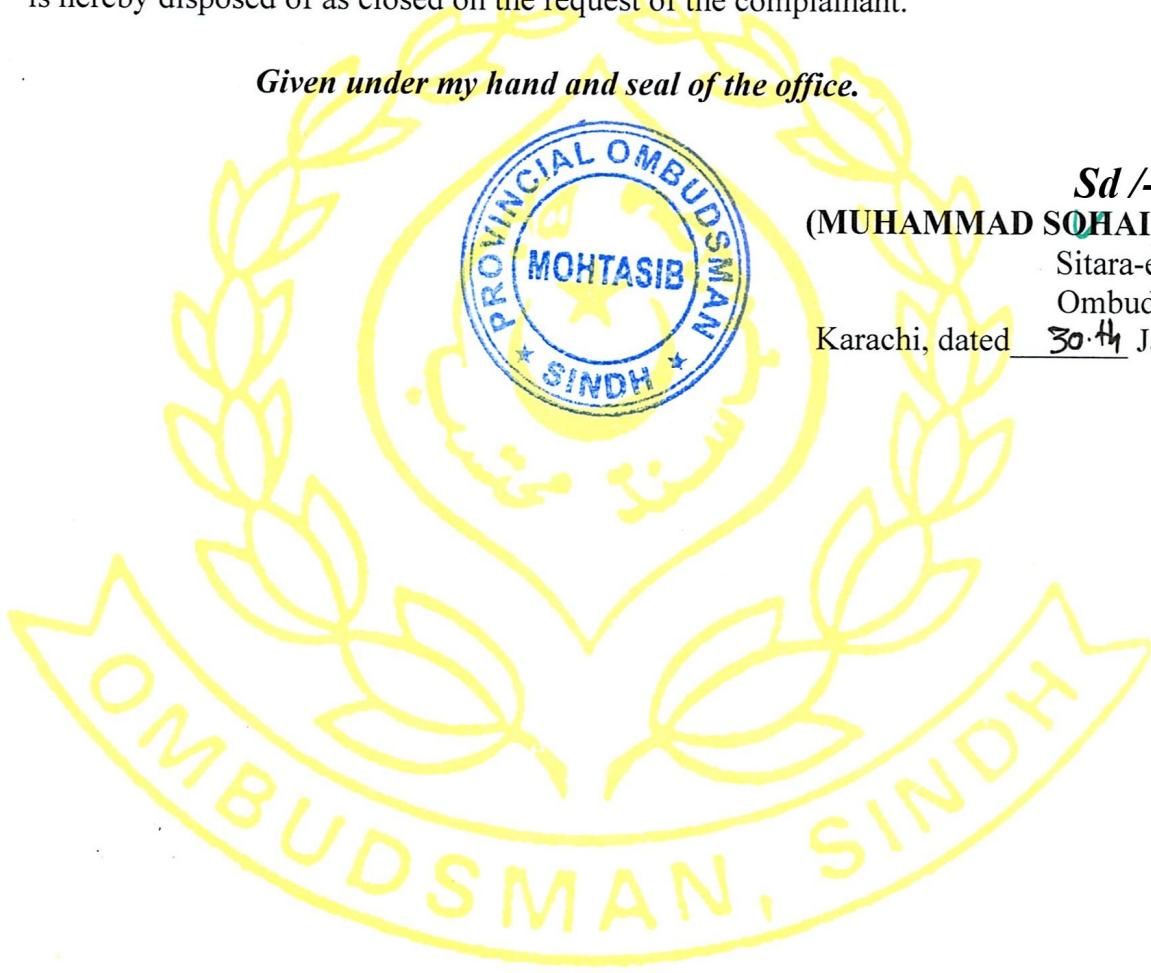
FINDINGS:

6. In view of the facts stated above and the complainant's own intention not to pursue the case, and his request to close it, there is no need to continue the investigation further.

DECISION:

7. In exercise of power vested in me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date), the complaint is hereby disposed of as closed on the request of the complainant.

Given under my hand and seal of the office.



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz PAS
Ombudsman, Sindh
Karachi, dated 30.11 January, 2026